

CHAPTER 21*Miscellaneous Financial Provisions Act, 1950***ARRANGEMENT OF SECTIONS****Section**

1. Temporary increase in Civil Contingencies Fund.
2. Loans to the Government of Northern Ireland.
3. Authorisation of grants in respect of police expenses.
4. Winding up of Czecho-Slovak Financial Claims Fund.
5. Short title and repeals.

SCHEDULE—Enactments Repealed.

An Act to make further provision for a temporary increase in the Civil Contingencies Fund, to authorise loans to the Government of Northern Ireland, to give statutory authority for the payment out of moneys provided by Parliament of grants in respect of the expenses of police forces in England and Wales, and to wind up the Czecho-Slovak Financial Claims Fund.

[28th July, 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows—

Temporary
increase
in Civil
Contingencies
Fund.

1. In subsection (1) of section three of the *Miscellaneous Financial Provisions Act, 1946*—

- (i) in proviso (a) (which requires repayment by the end of 1950 of all sums issued under that section for the temporary increase of the Civil Contingencies Fund) for the words "nineteen hundred and fifty" there shall be substituted the words "nineteen hundred and fifty-two"; and
- (ii) in proviso (b) (which limits the sums so issued and outstanding at any time to two hundred and fifty million pounds) for the words "two hundred and fifty million pounds" there shall be substituted the words "one hundred and twenty-five million pounds",

and the said section three (as extended by subsection (3) of

section three of the American Aid and European Payments (Financial Provisions) Act, 1949) and subsection (1) of section one of the said Act of 1946 (which authorises the Treasury to raise money for the purposes of the said section three of the same Act) shall have effect accordingly.

2.—(1) The Treasury may for the purpose of Northern Ireland Loans to the Government Loans advance to the Exchequer of Northern Ireland out of the Consolidated Fund of the United Kingdom or the growing produce thereof any sum or sums by way of loan: Government of Northern Ireland.

Provided that the aggregate amount of the principal outstanding in respect of any advances under this subsection shall not at any time exceed fifteen million pounds.

(2) For the purpose of providing sums to be issued under the foregoing subsection the Treasury may at any time, if they think fit, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939, and any securities created and issued to raise money under this subsection shall be deemed for all purposes to have been created and issued under that Act.

(3) Any sums issued under subsection (1) of this section shall be repaid to the Exchequer of the United Kingdom within such period as the Treasury may determine, and interest thereon at such rate and at such times as the Treasury may direct shall be paid into the said Exchequer.

(4) Sums paid into the Exchequer under the last foregoing subsection shall be issued out of the Consolidated Fund of the United Kingdom or the growing produce thereof at such times as the Treasury may direct and shall be applied by the Treasury as follows:—

- (a) so much thereof as represents principal shall be applied in redeeming or paying off debt of such description as the Treasury think fit;
- (b) so much thereof as represents interest shall be applied to the payment of interest which would, apart from this paragraph, have fallen to be paid out of the permanent annual charge for the National Debt.

(5) In this section the expression “Northern Ireland Government Loans” means loans for the purposes of which the Ministry of Finance for Northern Ireland are, for the time being, empowered to advance money out of the Government Loans Fund established by an Act of the Parliament of Northern Ireland entitled “The Government Loans Act (Northern Ireland), 1939”.

Authorisation
of grants in
respect of
police
expenses.

3.—(1) The payment by the Secretary of State out of moneys provided by Parliament of grants in respect of expenses incurred for the purposes of—

- (a) any police force in England or Wales in respect of which grants out of such moneys have been made by the Secretary of State before the passing of this Act; or
- (b) any combined police force, county police force or borough police force established in England or Wales after the passing of this Act,

is hereby authorised.

(2) The grants authorised by the foregoing subsection shall be of such amounts, be payable at such times, in such manner, and subject to such conditions, and be carried to such funds, as the Secretary of State may with the approval of the Treasury by order determine.

(3) Any order under this section may be varied or revoked by a subsequent order thereunder made in the like manner and subject to the like provisions.

(4) The power to make orders conferred by this section shall be exercisable by statutory instrument; and any such statutory instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) Section six of the Metropolitan Police Act, 1839 (which provides for the payment of a yearly sum to defray certain expenses of the Metropolitan Police) and, in Schedule (B) to the Public Revenue and Consolidated Fund Charges Act, 1854 (which requires that yearly sum to be paid out of moneys provided by Parliament), the head beginning "Expenses of the mounted police, river police and police van service" shall cease to have effect.

Winding up of
Czecho-Slovak
Financial
Claims Fund.

4. The Czecho-Slovak Financial Claims Fund established by section two of the Czecho-Slovakia (Financial Claims and Refugees) Act, 1940, shall be wound up and, accordingly, the following enactments shall cease to have effect, that is to say—

- (a) subsection (2) of the said section two (which authorises the application of the moneys paid into the Fund under subsection (1) of that section in or towards satisfying certain obligations of the Government of the Republic of Czecho-Slovakia and of persons or bodies in, or incorporated under the laws of, that country and in defraying expenses); and
- (b) subsection (3) of the said section two (which requires the payment into the said Fund of any sums received by the Treasury in respect of the satisfaction of any obligations satisfied under the said subsection (2)); and

- (c) so much of section four of the said Act as requires the preparation, examination and certification of yearly accounts of the said Fund, and the laying of those accounts before Parliament.

5.—(1) This Act may be cited as the Miscellaneous Financial Provisions Act, 1950. Short title
and repeals.

(2) The Acts specified in the second column of the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULE

Section 5.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
2 & 3 Vict. c. 47.	The Metropolitan Police Act, 1839.	Section six.
17 & 18 Vict. c. 94.	The Public Revenue and Consolidated Fund Charges Act, 1854.	In Schedule (B) the words "Expenses of the mounted police, river police and police van service, and superannuation of the late horse and foot patrol—2 & 3 Vict. c. 47".
3 & 4 Geo. 6. c. 4.	The Czecho-Slovakia (Financial Claims and Refugees) Act, 1940.	Section two. In section four the words "the Czecho-Slovak Financial Claims Fund and" and the word "respectively".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Metropolitan Police Act, 1839	2 & 3 Vict. c. 47.
Public Revenue and Consolidated Fund Charges Act, 1854	17 & 18 Vict. c. 94.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
Czecho-Slovakia (Financial Claims and Refugees) Act, 1940	3 & 4 Geo. 6. c. 4.
Miscellaneous Financial Provisions Act, 1946 ...	9 & 10 Geo. 6. c. 40.
American Aid and European Payments (Financial Provisions) Act, 1949	12, 13 & 14 Geo. 6. c. 17.